

CONTRACT: Software License Agreement - Oracle

Contract Details

Contract ID	C-002
Vendor	Oracle Corp
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Contract Content

SOFTWARE LICENSE AGREEMENT - ORACLE

Contract ID: C-002

This Software License Agreement ("Agreement") is entered into as of the Effective Date by and between Oracle Corporation, a Delaware corporation with its principal place of business at 500 Oracle Parkway, Redwood Shores, CA 94065 ("Vendor"), and the undersigned customer ("Customer"). Vendor and Customer may be referred to individually as a "Party" and collectively as the "Parties."

1. PARTIES

This Agreement is made between Oracle Corporation ("Vendor") and the Customer identified in the signature block below. Vendor is a provider of software and software-as-a-service ("SaaS") solutions. Customer desires to obtain access to Vendor's software and services subject to the terms and conditions set forth herein.

2. DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Software" means the proprietary software products provided by Vendor, including any updates, upgrades, or enhancements made available during the Term.
- (b) "Services" means the SaaS subscription services provided by Vendor, including hosting, maintenance, and support.
- (c) "Confidential Information" means any non-public information disclosed by one Party to the other that is marked as confidential or would reasonably be understood to be confidential given the nature of the information.

(d) "Effective Date" means the date on which this Agreement is executed by both Parties.

3. SCOPE OF SERVICES

Vendor shall provide Customer with access to the Software and Services as described in the applicable order form or subscription agreement. Vendor shall use commercially reasonable efforts to ensure the availability of the Services in accordance with the service levels set forth in Exhibit A.

4. TERM AND TERMINATION

(a) Term. The initial term of this Agreement shall be one (1) year from the Effective Date, unless otherwise specified in the applicable order form. This Agreement shall automatically renew for successive one-year terms unless either Party provides written notice of non-renewal at least thirty (30) days prior to the expiration of the then-current term.

(b) Termination. Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of the breach.

5. FEES AND PAYMENT

(a) Fees. Customer shall pay Vendor the fees set forth in the applicable order form or subscription agreement. All fees are non-refundable unless otherwise expressly stated.

(b) Payment Terms. Fees shall be invoiced annually in advance and shall be payable within thirty (30) days of the invoice date. Late payments shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

6. CONFIDENTIALITY

Each Party agrees to protect the other Party's Confidential Information using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. Confidential Information shall not be disclosed to any third party without the prior written consent of the disclosing Party, except as required by law.

7. DATA PROTECTION

Vendor shall implement and maintain reasonable administrative, technical, and physical safeguards to protect Customer's data from unauthorized access, disclosure, or destruction. Vendor shall comply with all applicable data protection laws and regulations in connection with the processing of Customer's data.

8. INTELLECTUAL PROPERTY

(a) Ownership. Vendor retains all rights, title, and interest in and to the Software, Services, and any related intellectual property. No rights are granted to Customer other than as expressly set forth in this Agreement.

(b) License. Vendor grants Customer a non-exclusive, non-transferable, revocable license to access and use the Software and Services solely for Customer's internal business purposes during the Term.

9. WARRANTIES

(a) Vendor warrants that the Software and Services will substantially conform to the documentation provided by Vendor.

(b) Vendor does not warrant that the Software or Services will be error-free or uninterrupted.

(c) Except as expressly provided herein, Vendor disclaims all other warranties, whether express, implied, or statutory, including any warranties of merchantability, fitness for a particular purpose, or non-infringement.

10. LIABILITY LIMITATION

To the maximum extent permitted by law, Vendor's total liability arising out of or related to this Agreement shall not exceed the total fees paid by Customer to Vendor in the twelve (12) months preceding the claim. In no event shall Vendor be liable for any indirect, incidental, consequential, or punitive damages, including loss of profits or revenue, even if advised of the possibility of such damages.

11. INDEMNITY

(a) Vendor Indemnity. Vendor shall indemnify, defend, and hold harmless Customer from and against any third-party claims alleging that the Software or Services infringe any intellectual property rights, provided that Customer promptly notifies Vendor of the claim and allows Vendor to control the defense and settlement of the claim.

(b) Customer Indemnity. Customer shall indemnify, defend, and hold harmless Vendor from and against any third-party claims arising out of Customer's use of the Software or Services in violation of this Agreement or applicable law.

12. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles.

13. DISPUTE RESOLUTION

Any dispute arising out of or relating to this Agreement shall be resolved through binding arbitration conducted in San Francisco, California, in accordance with the rules of the American Arbitration Association. The arbitration award shall be final and binding on the Parties.

14. MISCELLANEOUS

(a) Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements, understandings, or representations.

(b) Amendments. This Agreement may only be amended by a written agreement signed by both Parties.

(c) Assignment. Customer may not assign or transfer this Agreement without the prior written consent of Vendor.

(d) Notices. All notices under this Agreement shall be in writing and delivered to the addresses set forth in the signature block below.

(e) Severability. If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Oracle Corporation

By: _____

Name: _____

Title: _____

Date: _____

Customer

By: _____

Name: _____

Title: _____

Date: _____

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